IN THE SUPREME COURT OF THE STATE OF IDAHO

NOS. 44003 & 44004

STATE OF IDAHO,
Plaintiff-Respondent,

v.

BENJAMIN J. DAHL AKA: BENJAMIN JOHN DAHL,
Defendant-Appellant.

APPEAL FROM THE DISTRICT COURT OF THE THIRD JUDICIAL DISTRICT OF THE STATE OF IDAHO, IN AND FOR THE COUNTY OF CANYON
HONORABLE THOMAS J. RYAN, District Judge

REPLY BRIEF OF APPELLANT

ERIC D. FREDERICKSEN
State Appellate Public Defender
I.S.B. #6555
State of Idaho
Attorneys for Defendant-Appellant

ANDREA W. REYNOLDS
Deputy State Appellate Public Defender
I.S.B. #9525
322 E. Front Street, Suite 570
Boise, Idaho 83702
Phone: (208) 334-2712
Fax: (208) 334-2985

KENNETH K. JORGENSEN
Deputy Attorney General
Criminal Law Division
P.O. Box 83720
Boise, Idaho 83720-0010
(208) 334-4534
Attorney for Plaintiff-Respondent

TABLE OF CONTENTS

Statement of the Case 4

Nature of the Case 4

Statement of Facts and Course of Proceedings 5

Issue 5

Argument 5

The District Court Erred In Denying Mr. Dahl's Motion To Suppress 5

A. Mr. Dahl's Room Would Not Have Been Searched But For The Officers' Illegal Entry Into His Home 5

B. The State Did Not Meet Its Burden Of Establishing The Consent Given By Mr. Dahl And/Or His Mother Was Sufficiently Attenuated From The Illegal Entry To Expunge The Taint Of The Unlawful Police Conduct 8

C. Even If The Consent Was Sufficiently Attenuated From The Illegal Entry, The State Did Not Meet Its Burden Of Establishing By A Preponderance Of The Evidence The Validity Of That Consent 10

Conclusion 13

TABLE OF AUTHORITIES

Cases

Herring v. United States, 555 U.S. 135 (2009) 10

State v. Page, 140 Idaho 841 (2004) 8

State v. Cohagan, 2016 WL 7048041 (Ct. App. Dec. 5, 2016) 8, 10

State v. Hudson, 147 Idaho 335 (Ct. App. 2009) 8

State v. Kapelle, 158 Idaho 121 (Ct. App. 2014) 5, 6

STATEMENT OF THE CASE

Nature of the Case

Mr. Dahl appeals from his judgment of conviction, challenging the district court's denial of his motion to suppress. The district court erred in denying Mr. Dahl's motion because the officers who entered his family's home at the invitation of his eight-year-old sister would not have discovered any contraband in his bedroom but for the illegal entry, which never ceased. The State did not meet its burden of establishing that any consent given for the search of Mr. Dahl's bedroom was sufficiently attenuated from the illegal entry to expunge the taint of the unlawful police conduct; nor did the State meet its burden of establishing the validity of that consent.

Mr. Dahl submits this Reply Brief to further argue that he met his burden of showing the evidence found in his bedroom would not have come to light but for the government's unconstitutional conduct, and the State failed to meet its burden of showing any consent given for the search of Mr. Dahl's bedroom was sufficiently attenuated from the illegal entry. Mr. Dahl also responds to the State's argument that the issue of the validity of the consent was not preserved for this Court's review. The record reflects the issue was raised in the district court, was decided by the district court, and can be considered by this Court on appeal.

Because the evidence found in Mr. Dahl's bedroom was the product of illegal government activity, it should have been suppressed.

Statement of Facts and Course of Proceedings

Mr. Dahl included a statement of facts and course of proceedings in his opening brief. (App. Br., pp.1-6.) He incorporates that statement by reference herein.

ISSUE

Did the district court err in denying Mr. Dahl's motion to suppress?

ARGUMENT

The District Court Erred In Denying Mr. Dahl's Motion To Suppress

A. Mr. Dahl's Room Would Not Have Been Searched But For The Officers' Illegal Entry Into His Home

Under *State v. Kapelle*, 158 Idaho 121 (Ct. App. 2014), the defendant must make a prima facie showing that the evidence sought to be suppressed would not have come to light but for the government's unconstitutional conduct. *Id.* at 127. The defendant must show that, on the events that took place, "the discovery of the evidence was a product or result of the unlawful police conduct." *Id.* (citation committed). The State contends Mr. Dahl did not make this prima facie showing,

arguing this case is analogous to *Kapelle*. (Resp. Br., pp.12-17.) The State is mistaken.

In *Kapelle*, the Court of Appeals concluded that one of the officers who approached the defendant's trailer in response to a confidential tip about a wanted felon conducted an illegal search when he circled around the trailer. 158 Idaho at 123, 127. The Court concluded, however, that the incriminating evidence found in the trailer was not the product of illegal activity because the illegal search "did not yield any incriminating evidence" and, by the time the defendant consented to the officer's entry into his trailer, the officer who had conducted the illegal search "had returned to the front of the trailer." *Id.* at 128. The Court explained "the illegal search had ended and the officer was again in a place he was lawfully entitled to be." *Id.*

In the present case, the officers' illegal entry into Mr. Dahl's home never ended. The officers were not in a place they were lawfully entitled to be when they arguably obtained consent from Mr. Dahl's mother, and ultimately Mr. Dahl, for the search of Mr. Dahl's bedroom. This would be a different case if, after illegally entering Mr. Dahl's home, the officers left the home, and later re-entered the home legally. But that is not what happened. The officers never left Mr. Dahl's home and

there is no indication they would have been allowed entry into the home by anyone other than Mr. Dahl's eight-year-old sister.

When the officers first knocked on the door of Mr. Dahl's residence, they had to wait almost three minutes for a response. (Mot. to Aug., Ex. A, at 00:08-02:48.) After having a conversation with Mr. Dahl's eight-year-old sister, which ended with the front door being closed, they knocked again, and waited almost two minutes for the girl to respond again. (Mot. to Aug., Ex. A, at 03:02-04:46.) When the officers entered the home at the invitation of the child, they waited another minute and one-half for Mr. Dahl's mother to appear, and Officer Hoeksema apologized for waking her. (Mot. to Aug., Ex. A, at 06:08-07:26.) When they went upstairs to Mr. Dahl's bedroom, the officers found Mr. Dahl in boxers and a t-shirt and Officer Hoeksema assumed Mr. Dahl had been asleep. (9/8/15 Tr., p.11, Ls.10-18.)

But for the officers' illegal entry into Mr. Dahl's home, which never ended, the officers would not have encountered either Mr. Dahl or his mother and would not have been in a position to search Mr. Dahl's room, with or without consent. The evidence discovered in Mr. Dahl's bedroom would not have come to light but for the government's unconstitutional conduct.

B. The State Did Not Meet Its Burden Of Establishing The Consent Given By Mr. Dahl And/Or His Mother Was Sufficiently Attenuated From The Illegal Entry To Expunge The Taint Of The Unlawful Police Conduct

"Once a defendant demonstrates a causal connection between the police misconduct and the evidence, the burden shifts to the government to show that the unlawful conduct did not taint the evidence, either by demonstrating discovery through independent means, inevitable discovery, or attenuation from the illegality sufficient to dissipate its taint." *State v. Cohagan*, 2016 WL 7048041, at *(Ct. App. Dec. 5, 2016). "The attenuation doctrine permits the use of evidence that would normally be suppressed as fruit of the police misconduct if the causal chain between the misconduct and the discovery of the evidence has been sufficiently attenuated." *Id.* In *State v. Page*, 140 Idaho 841 (2004), the Idaho Supreme Court employed a three-factor test to determine whether unlawful governmental conduct has been adequately attenuated. The factors to be considered are: "(1) the elapsed time between the misconduct and the acquisition of the evidence; (2) the occurrence of intervening circumstances; and (3) the flagrancy and purpose of the improper law enforcement action." *Page*, 140 Idaho at 846.

Mr. Dahl argued in his opening brief that all of these factors weighed against a finding of attenuation, and analogized this case to *State v. Hudson*, 147 Idaho 335 (Ct. App. 2009). (App. Br., pp.10-12.) The State does not discuss the three factors in its brief; nor does the State address or attempt to distinguish *Hudson*. (Resp. Br.,

pp.17-20.) Instead, the State argues the officers' illegal entry into Mr. Dahl's home was sufficiently attenuated from the evidence found in Mr. Dahl's bedroom because "there was no exploitation of the alleged illegality." (Resp. Br., p.18.) Not only is this not the test for attenuation, the State is incorrect.

The officers' unlawful entry in Mr. Dahl's home was not sufficiently attenuated from the discovery of the evidence in Mr. Dahl's bedroom because very little time elapsed between the illegal entry and the acquisition of the evidence; the consent that was supposedly obtained from Mr. Dahl's mother and Mr. Dahl was inextricably intertwined with the illegal entry; and the officers knew they were entering Mr. Dahl's home illegally, and knowingly took advantage of their position inside the home to search Mr. Dahl's bedroom. Notably, the State fails to mention the fact that the officers lied in their reports about the circumstances surrounding their entry into Mr. Dahl's home. Both officers falsely stated in their police reports that they were invited into Mr. Dahl's home by an adult. (Conf. Exs., pp.23, 26.) The officers knew a child could not lawfully allow them to enter the residence. The district court concluded "it was not reasonable for the officers to believe the child had actual authority to grant them permission to enter the home, nor was it reasonable for them to conclude that such consent was voluntary." (R., p.72.) The district court further concluded the officers "should have reasonably known that

[the eight-year-old child] did not have authority to consent to the entry." (R., p.72.) The State does not challenge these conclusions on appeal.

The purpose of the exclusionary rule is "to deter deliberate, reckless, or grossly negligent conduct." *Cohagan*, 2016 WL 7048041, *4 (quoting *Herring v. United States*, 555 U.S. 135, 144 (2009)). Application of the exclusionary rule here serves this deterrent function because the officers who entered Mr. Dahl's home with the "consent" of Mr. Dahl's eight-year-old sister knowingly engaged in conduct which benefitted them at the expense of Mr. Dahl's rights. *See id.*

C. Even If The Consent Was Sufficiently Attenuated From The Illegal Entry, The State Did Not Meet Its Burden Of Establishing By A Preponderance Of The Evidence The Validity Of That Consent

Mr. Dahl argued in his opening brief that even if the consent given by him and/or his mother was sufficiently attenuated from the illegal entry, the State did not meet its burden of establishing by a preponderance of the evidence the validity of that consent. (App. Br., pp.12-14.) The State argues in its brief that this issue was not preserved for this Court's review because Mr. Dahl "never raised an alleged lack of voluntariness of his and his mother's consents as a basis for suppression below." (Resp. Br., p.20.) The State's argument is directly contradicted by the record.

At the suppression hearing, counsel for Mr. Dahl explained to the district court:

> You'll hear on the audio that it's not clear whether Mr. Dahl gave the officers consent when they entered his bedroom. I only point this out if it becomes relevant. I don't think it's relevant because I think the entry into the home was unlawful, and so all of this should be suppressed. But I think it's important to know that because the search of his room could be suppressed on the grounds that there was no consent for him to get into the bedroom.

(Tr. p.22, Ls.8-16.) The district court asked counsel for Mr. Dahl, "Was it clear on the audio that Ms. Dahl granted consent to search?" (Tr., p.23, Ls.2-3.) Counsel responded that even if Mr. Dahl's mother had consented, her consent would not have been valid because Mr. Dahl had a privacy interest in his own room. (Tr., p.23, Ls.4-23.) The district court asked the prosecutor whether he had "[a]ny argument." (Tr., p.24, L.23.) The prosecutor responded:

> I didn't really deal with whether the homeowner had given consent or the defendant had given consent because that wasn't something that was argued in the defense brief . . . . So I sort of just stepped over that issue without necessarily conceding it because I really didn't think it was relevant . . . . So it's very difficult to me to respond to some of the cases cited by the defense today because I haven't had the benefit of reading them, and it wasn't in their brief, so I didn't prepare that issue. However, I'll take a look at those cases after the fact and supplement my response if I think it's necessary, but I still think, Judge, the issue is whether there's a nexus.

(Tr., p.25, Ls.9-25 (paragraph breaks omitted).) The district court responded, "Well, I too want to take a look at those cases and incorporate the rulings in those cases to the facts of this particular situation." (Tr., p.26, Ls.5-7.)

Following the hearing, counsel for Mr. Dahl filed a notice of supplemental authority arguing "[t]he State has failed to meet its burden [of proving] that valid consent was given to search the Dahl residence." (R., pp.56-57.) The State filed an objection to Mr. Dahl's supplemental authority arguing "[t]he defense has clearly changed its basis for requested suppression." (R., pp.62-63.) The State asked the district court "not [to] consider" the supplemental authority cited by Mr. Dahl. (R., p.63.) The district court impliedly overruled the State's objection, as it cited to and discussed Mr. Dahl's supplemental authority in its memorandum decision denying Mr. Dahl's motion to suppress. (R., pp.72-74.) The district court concluded that even though the officers entered Mr. Dahl's home illegally, "the two other valid consents independently justified the initial warrantless entry." (R., p.74.)

Because Mr. Dahl raised in the district court the issue of the validity of the consent given by him and his mother, the issue has been preserved for this Court's review. With respect to the merits of this issue, Mr. Dahl relies on the argument he included in his opening brief. (App. Br., pp.12-14.)

CONCLUSION

For the reasons stated above as well as those set forth in his opening brief, Mr. Dahl respectfully requests that this Court vacate his conviction, reverse the district court's order denying his motion to suppress, and remand this case to the district court for further proceedings.

DATED this 24th day of January, 2017.

This brief contains 2166 words and complies with the word-count limit of I.A.R. 34(b).

/s/ *ANDREA W. REYNOLDS*
ANDREA W. REYNOLDS
Deputy State Appellate Public Defender

CERTIFICATE OF MAILING

I HEREBY CERTIFY that on this 24th day of January, 2017, I served a true and correct copy of the foregoing APPELLANT'S REPLY BRIEF, by causing to be placed a copy thereof in the U.S. Mail, addressed to:

BENJAMIN J DAHL
19419 BRUSH CREEK AVE
CALDWELL ID 83605

THOMAS J RYAN
DISTRICT COURT JUDGE
E-MAILED BRIEF

KIMBERLY SIMMONS
CANYON COUNTY PUBLIC DEFENDER
E-MAILED BRIEF

KENNETH K JORGENSEN
DEPUTY ATTORNEY GENERAL
CRIMINAL DIVISION
E-MAILED BRIEF

/s/ *EVAN A. SMITH*
EVAN A. SMITH
Administrative Assistant